**BRENDAN NGWA NFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

**SUPERIOR COURT OF THE STATE OF CALIFORNIA**

**COUNTY OF SAN JOAQUIN**

| | |
|---|---|
| **BRENDAN NGWA NFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**SWIFT TRANSPORTATION CO. OF ARIZONA LLC, a limited liability company, d/b/a SWIFT TRANSPORTATION; and DOES 1 through 20, inclusive,**<br><br>Defendants. | Case No. _____<br><br>**VERIFIED COMPLAINT FOR DAMAGES, DECLARATORY AND INJUNCTIVE RELIEF**<br><br>(1) ICRAA, Civ. Code §§ 1786.40, 1786.50;<br>(2) UCL, B&P Code § 17200;<br>(3) Penal Code § 290.46(j) (I&B — preliminary NSOPW / registry)<br><br>*[Unlimited Civil]*<br>*[Jury Trial Demanded]* |

Plaintiff BRENDAN NGWA NFORBI ("Plaintiff") alleges as follows:

## I.

## INTRODUCTION

1. This is an action under Penal Code section 290.46, subdivision (j), the California Investigative Consumer Reporting Agencies Act, and the Unfair Competition Law. In September 2023, Plaintiff applied to Swift Transportation Co. of Arizona LLC for a Class A Driver position. On September 26, 2023, Swift sent a pre-adverse packet whose National Sex Offender Public Website component remained 'Processing.' On October 5, 2023, Swift sent a post-adverse letter admitting that consumer reports from Asurint, Tenstreet, DriverIQ,

FMCSA-DOT, and Equifax Work Number caused the denial. Plaintiff is informed and believes, and on that basis alleges, that Swift's decision was based in whole or in part on preliminary information from that report citing a sex-offender registry.

2. The September 26, 2023 pre-adverse packet has been decrypted. Plaintiff alleges its contents as known facts. The packet does not state 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The National Criminal search run without a sex-offender component returned Clear / No Reportable Records Found. Federal criminal returned Clear. The county criminal searches that had completed returned Clear. The National Sex Offender Public Website component remained 'Processing' on every snapshot in the packet. It never completed. It reported no hit. Clearinghouse returned Driver Not Prohibited. What the packet does contain — a Class A commercial driver's license, an April 22, 2022 improper-lane moving violation with zero points, PSP inspection history, and a CDLIS license-identity match — is not information disclosed pursuant to Penal Code section 290.46.

3. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk. Subdivision (j)(2)(E) prohibits use of that information for purposes relating to employment, except as another law authorizes. A commercial-driver hiring decision is a purpose relating to employment.

4. Federal motor-carrier screening does not swallow this claim. The FMCSA Drug and Alcohol Clearinghouse and the Pre-Employment Screening Program concern drug-and-alcohol violations and crash or inspection history. They are not Penal Code section 290.46 disclosures. An employer that may lawfully obtain ordinary criminal-history or safety records is not thereby authorized to use Megan's Law website information for employment. Penal Code section 290.46(j)(3) says so.

5. Plaintiff does not allege that the decrypted packet contains a completed NSOPW hit

or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' He does allege, on information and belief, that Swift used preliminary information from the still-Processing NSOPW component — information citing a sex-offender registry, including information disclosed pursuant to Penal Code section 290.46 or a derivative national compilation whose source was the California registry — in whole or in part in the denial. Code of Civil Procedure section 425.10 requires a statement of the facts constituting the cause of action in ordinary and concise language. Section 452 requires this Court to construe the pleading liberally. The vendor adjudication log, interim NSOPW return, and decision-maker communications are exclusively in Defendants' possession.

6. In July 2024, First Advantage prepared an employment background report on Plaintiff for United Parcel Service. That report, later lodged in federal court by UPS, identified a Department of Justice website / National Sex Offender Registry search as decisional, stated 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY,' and produced an overall INELIGIBLE result. That report is not the Swift report. It is alleged because it shows that commercial screeners could and did identify this Plaintiff through the California registry and treat that identification as dispositive of employment eligibility.

7. Plaintiff does not name Knight-Swift Transportation Holdings, Inc., or any other parent, merely because it owns affiliated entities. He has sued DOES 1 through 10 for the consumer reporting agency that actually returned registry-derived information and for any Swift affiliate that was the actual employing or decision-making entity.

8. This Complaint does not plead a Tameny wrongful-termination or failure-to-hire count, an IIED count, a Fair Credit Reporting Act count, or a FEHA or Fair Chance Act count. The section 290.46(j) count is pleaded on information and belief that Swift used preliminary sex-offender-registry information from the in-process NSOPW component. Civil Code sections 1786.40 and 1786.50 and Business and Professions Code section 17200 are independent paths

that do not require a completed registry hit. Plaintiff preserves all timely rights to seek leave to amend.

## II.

## PARTIES

9. Plaintiff BRENDAN NGWA NFORBI is a natural person residing in Stockton, San Joaquin County, California. He is also identified in employment and court records as Brendan Ngehsi Ngwa Nforbi and Brendan Ngehsi Ngwanforbi. Those name variants refer to Plaintiff.

10. Plaintiff is required to register under California Penal Code section 290. At all times relevant to this Complaint, information identifying him appeared on California's Megan's Law website and California Sex Offender Registry, operated pursuant to Penal Code section 290.46.

11. Defendant SWIFT TRANSPORTATION CO. OF ARIZONA LLC ('Swift') is a limited liability company that does business as Swift Transportation. Its October 5, 2023 letter lists 2200 South 75th Avenue, Phoenix, Arizona 85043. On September 25, 2023, the FMCSA Clearinghouse identified the querying employer as SWIFT TRANSPORTATION CO OF ARIZONA LLC, USDOT number 54283. On information and belief, Swift is qualified to transact business in California and was the entity that recruited Plaintiff, ordered the reports, and made the employment decision challenged here.

12. On information and belief, Swift's designated agent for service of process in California is National Registered Agents, Inc. Plaintiff will serve Swift through the agent listed on the California Secretary of State record as of the date of service. Service is not to be made at a terminal or recruiter's phone number merely because that is how Plaintiff first heard from Swift.

13. The true names and capacities of DOES 1 through 20 are unknown to Plaintiff, who therefore sues them by fictitious names under Code of Civil Procedure section 474. DOES 1 through 10 include the consumer reporting agency, investigative consumer reporting agency, or other vendor that assembled, evaluated, furnished, or scored background information about Plaintiff for Swift — including, if discovery so shows, Asurint, Tenstreet, LLC, DriverIQ / Cisive, or Equifax Workforce Solutions — and the individuals who ordered, reviewed, or acted on that information. Plaintiff will amend when their identities and roles are ascertained.

14. Robin Kaufman and Matt Hutto communicated with Plaintiff as Swift driver recruiters. They are percipient witnesses, not presently named as defendants. Matt Hutto's message used a Class A Recruiting address while stating it was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

15. Plaintiff is informed and believes that each DOE Defendant participated in, authorized, directed, furnished information for, implemented, concealed, or ratified one or more acts alleged and is legally responsible for the resulting harm.

## III.

## JURISDICTION AND VENUE

16. This Court has subject-matter jurisdiction under article VI, section 10 of the California Constitution and Code of Civil Procedure section 410.10.

17. This action is properly designated unlimited civil under Code of Civil Procedure sections 85 and 88 because the aggregate relief sought exceeds $35,000, exclusive of interest and costs. No specific personal-injury or punitive-damages amount is pleaded.

18. This Court has personal jurisdiction over Swift because Swift recruited Plaintiff, a

California resident, for work; caused consumer reports to be procured about a California resident; sent the pre-adverse and post-adverse communications to Plaintiff in California; and is, on information and belief, qualified to do business in California.

19. Venue is proper in the County of San Joaquin under Code of Civil Procedure sections 395 and 395.5 because Plaintiff resides here, he received the recruiting, screening, and adverse-action communications here, and the liability and injury arose here.

20. Plaintiff has not pleaded a federal claim. This Complaint is a California statutory action belonging in this Court.

## IV.

## TIMELINESS

21. Penal Code section 290.46 does not prescribe its own limitations period. This action upon a liability created by that statute is timely under Code of Civil Procedure section 338, subdivision (a), which requires that such an action, other than a penalty or forfeiture, be commenced within three years after accrual.

22. The cause of action accrued, if at all, when Swift used registry information for purposes relating to Plaintiff's employment — that is, on the date of the employment decision, not on the date of application, and not on the date Plaintiff first registered under section 290.

23. Swift's written post-adverse letter is dated October 5, 2023, at 5:09 a.m. Swift Recruiting emailed that letter the same day. Three years from October 5, 2023, is October 5, 2026. Swift Recruiting emailed a password-protected pre-adverse letter on September 26, 2023. Three years from that earlier date is September 26, 2026. This Complaint is prepared for execution on September 8, 2026, inside both dates.

24. Plaintiff does not concede that Code of Civil Procedure section 335.1 or section 340, subdivision (a), supplies the limitations period for the section 290.46(j) count. He does not plead a Tameny or personal-injury count. A two-year clock from September 26 or October 5, 2023, would have closed in 2025. He has not pleaded the Fair Credit Reporting Act; the two-year FCRA discovery clock from those same 2023 letters would likewise have closed.

## V.

## COMMON FACTUAL ALLEGATIONS

### A. The Swift Application

25. On Friday, September 22, 2023, at 3:02 p.m., Robin Kaufman, identifying herself as a Swift Transportation Driver Recruiter, emailed Plaintiff that she had received his information and asked him to complete the full application. The message was sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC, 120 W. 3rd Street, Tulsa, Oklahoma 74103. Her stated direct line was 623-907-7414 and her address robin_kaufman@swifttrans.com.

26. That same evening, at 10:03 p.m., Matt Hutto, also identifying himself as a Swift Driver Recruiter, emailed that he was trying to reach Plaintiff at the number Plaintiff had provided, asked him to complete the full driver application, and gave 803-564-3092 as a return number. The message used Mhutto@classarecruitinginc.com and was likewise sent on behalf of Swift Transportation Co. of Arizona LLC by Tenstreet, LLC.

27. The application was for a Class A Driver position. The file does not contain the completed application, a written offer, a terminal assignment, or a rate of pay.

**B. The September 25, 2023 Screen**

28. On Monday, September 25, 2023, at 11:54 a.m., Tenstreet notified Plaintiff that a DriverIQ employment background document ordered in connection with Swift was available in Driver Pulse.

29. Four minutes later, at 11:58 a.m., the FMCSA Office of Safety Programs emailed Plaintiff that SWIFT TRANSPORTATION CO OF ARIZONA LLC (USDOT# 54283) had requested access to his FMCSA Drug and Alcohol Clearinghouse record. The email warned that refusal would prohibit him from operating a commercial motor vehicle or performing other safety-sensitive functions for Swift.

30. At 1:20 p.m. the same day, Tenstreet notified Plaintiff that his FMCSA Clearinghouse result ordered by Swift Transportation Co. of Arizona LLC was available for review. The decrypted pre-adverse packet includes a Clearinghouse result of Driver Not Prohibited, with no open violations.

31. The Clearinghouse query is alleged as proof that Swift was then treating Plaintiff as a prospective commercial-driver hire and was running federally required safety screens. It is not alleged to be a Penal Code section 290.46 disclosure. Clearinghouse records concern drug and alcohol program violations, not Megan's Law.

**C. The Pre-Adverse and Post-Adverse Letters**

32. On Tuesday, September 26, 2023, at 3:09 a.m., Swift Recruiting (recruitadmin@swifttrans.com) emailed Plaintiff a message titled 'Swift Transportation - FCRA,' addressed to Brendan Ngehsi Ngwa Nforbi, stating that an important communication was attached as Pre_Adverse_Action_Letter_76326281-1916808-encrypted.pdf and that the

password was the last four digits of his Social Security number.

33. The pre-adverse attachment has been decrypted. It is a composite screening packet, not a blank cover letter. It includes completed criminal-file components returning Clear, an NSOPW component that remained Processing on every snapshot, a Clearinghouse result of Driver Not Prohibited, an MVR, PSP inspection history, and CDLIS license-identity information. Plaintiff does not republish identifiers from that packet in this pleading. He alleges the adjudication results as known facts.

34. On Thursday, October 5, 2023, at 3:09 a.m., Swift Recruiting emailed Plaintiff a second 'Swift Transportation - FCRA' message, this time attaching Post_Adverse_Action_Letter_76326281-1916809_em.pdf.

35. The enclosed letter is on Swift Transportation Co. of Arizona LLC letterhead, dated October 5, 2023, 5:09 a.m., and addressed to Brendan Ngehsi Nforbi at 1455 Cat Tail Drive, Stockton, California 95204. It states that offers of employment at Swift are contingent upon successful completion of a background check, and that the letter 'serves as notification that we have decided not to employ you or have decided to take other adverse action based in whole or in part on a consumer report received from a consumer reporting agency.'

36. The letter states that Asurint (Cleveland, Ohio), Tenstreet (Tulsa, Oklahoma), DriverIQ (Tulsa, Oklahoma; disputes at Cisive), FMCSA-DOT, and The Work Number / Equifax Workforce Solutions 'provided us with consumer reports which, in whole or in part, influenced our employment decision.' It states those agencies played no part in the decision other than providing the reports.

37. The October 5 letter says a copy of the consumer report and a Summary of Rights were attached. The decrypted September 26 packet is the report-side paper in Plaintiff's files. It

does not contain a completed NSOPW result, a California Sex Offender Registry source line, or a separate later Asurint, Tenstreet, or DriverIQ printout showing a registry hit. Civil Code sections 1786.10 and 1786.22 entitle Plaintiff to inspect the files those agencies maintain on him. Plaintiff has not yet served those inspection requests. He will.

38. The California disclosure in that packet states that Swift may order a consumer report or investigative consumer report including 'federal criminal history, state criminal history, public court records,' and names the same agencies. Criminal-history and court-record searches are not this claim. This claim is the use of information disclosed pursuant to Penal Code section 290.46.

**D. Facts Supporting the Registry-Use Inference**

39. Plaintiff is a person as to whom information is disclosed on the California Megan's Law website. That website, and the statute that created it, warn that the information may not be used for employment.

40. Swift is a national motor carrier. On information and belief, it maintains written background-screening policies for driver applicants, contracts with the agencies named in its October 5 letter, and adjudicates hits through a centralized process rather than by ad hoc decision of a single recruiter.

41. On information and belief, the ordinary Swift driver screen in 2023 included a search, or caused a vendor to search, sex-offender registry or Department of Justice public-notification sources, including sources that republish or are derived from California Penal Code section 290.46 disclosures.

42. The July 2024 First Advantage / UPS report is alleged for three limited purposes: it

shows that Plaintiff's registry status was commercially retrievable for employment screening; it shows that at least one national CRA treated a California-registry source as an employment-eligibility bar for this Plaintiff; and it identifies the kind of record Swift's vendors would have been able to return. Plaintiff does not allege that First Advantage was Swift's vendor, and does not allege that UPS sent its report to Swift.

43. The NSOPW component was still Processing. A search that never completed is not a completed 'no record' result. It is also not a completed printed hit. Plaintiff is informed and believes, and on that basis alleges, that Swift or a DOE obtained, displayed, scored, or was informed of preliminary information from that in-process NSOPW component citing a sex-offender registry — including information disclosed pursuant to Penal Code section 290.46 or a derivative national compilation whose source of record was the California registry — and used that preliminary information in whole or in part in the October 5, 2023 decision.

44. The basis for paragraph 43 is the combination of: Swift ordered an NSOPW sex-offender-website search; that component remained Processing on every snapshot in the packet sent with the pre-adverse notice; Swift then denied employment based in whole or in part on consumer reports; the completed criminal, Clearinghouse, and MVR components that are in the packet do not themselves explain a registry-based denial; Plaintiff was then listed on the California Megan's Law website; commercial screeners had already shown they could match this Plaintiff to the California registry; and the interim NSOPW return, adjudication notes, and decision-maker communications are exclusively in Defendants' possession.

45. Swift admitted in writing that consumer reports caused the denial. It took that action while a sex-offender-website component remained Processing. It did not, in the October 5 letter, identify the specific item that caused the denial or supply a completed NSOPW result. Civil Code section 1786.40 required advice that an investigative consumer report had been obtained and the agency's name and address at denial. The letter names agencies. It does not

advise that an investigative consumer report containing an incomplete NSOPW had been obtained, and it does not supply a complete copy of every component. The ICRAA and UCL counts rest on that notice and completeness failure even if the preliminary-registry-use inference later fails.

46. Alternative explanations — a failed Clearinghouse or drug-and-alcohol result, a driving-record or crash disqualification, a lawful criminal-history adjudication under a statute that actually authorizes the use, a CDL defect, or a withdrawal of the application — can be tested against a discrete set of records. Plaintiff will seek the application file, the Asurint, Tenstreet, and DriverIQ reports, the Clearinghouse and PSP results, adjudication notes, and communications of the decision-maker.

47. Lerma v. Amazon.com Services, LLC, C.D. Cal. No. 8:22-cv-01727, Dkt. 36, dismissed a Megan's Law count after the employer's report was in the record and showed ordinary court records and a completed national sex-offender search returning no record. This packet is not that report. The NSOPW component never completed. A demurrer may take the printed snapshots as what Plaintiff has pleaded them to be. It cannot convert an incomplete NSOPW into Lerma's completed no-record search, and it cannot decide — without the adjudication log — whether Swift used preliminary registry information from that in-process component. Defendants may not obtain a pleading-stage dismissal by withholding the interim NSOPW return and the decision-maker file. If production shows a completed NSOPW returning no record and no preliminary registry use, the Penal Code count will stand or fall on that file — after production, not by assuming it now.

48. The use was not to protect a person at risk within the meaning of section 290.46(j)(1). A general commercial-driver assignment is not, without more, the narrow authorization that subdivision (j)(1) describes. FMCSA authorization to query the Clearinghouse or PSP is not authorization to use Megan's Law website information. Swift has

the burden of proving any other statutory authorization as a defense.

**E. Knowledge, Concealment, and Harm**

49. Swift knew or should have known that employment use of Megan's Law information is prohibited. The registry website displays that warning. Swift is a sophisticated interstate carrier with dedicated compliance and screening functions. On information and belief, its vendor contracts and adjudication guides address or should address California registry restrictions.

50. On information and belief, Swift did not identify the registry, or any other specific ground, as the basis for the decision. The October 5 letter names agencies, not hits. That omission deprived Plaintiff of a meaningful opportunity to inspect the source, dispute a mismatch, and invoke the statutory remedies before the decision became final.

51. As a result of the decision, Plaintiff lost the Class A Driver opportunity, including the wages and benefits of that position, according to proof and subject to mitigation. He also suffered emotional distress, humiliation, and anxiety from an unexplained denial he is informed and believes rested on a status the Legislature has forbidden employers to use. Wages earned, if any, will be proven.

52. Plaintiff has sought and continues to seek replacement employment and does not claim a guaranteed lifetime expectancy from an unaccepted driver application. Economic damages will be limited to losses proven with reasonable certainty and without double recovery against other dockets that arise from different employers and different decisions.

## VI.

## FIRST CAUSE OF ACTION

**California Investigative Consumer Reporting Agencies Act**
**Civil Code sections 1786.40 and 1786.50 — Against Swift and User DOES**
**(Load-Bearing Count)**

59. Plaintiff realleges paragraphs 1 through 52 and 56 through 57 to the extent consistent with this cause.

60. On information and belief, one or more of the agencies Swift named assembled or evaluated information concerning Plaintiff's character, general reputation, personal characteristics, or mode of living for employment purposes at Swift's request, and Swift was the user of that information before the October 5, 2023 decision.

61. Civil Code section 1786.40(a) required Swift, under circumstances in which employment was denied and an investigative consumer report had been obtained, to advise Plaintiff of that fact and supply the agency's name and address. Swift's October 5 letter names agencies. It does not advise that an investigative consumer report containing an incomplete NSOPW component had been obtained. It does not identify which component caused the denial.

62. The decrypted packet is not a complete investigative consumer report. NSOPW remained Processing. Plaintiff was denied while that component was unfinished. Civil Code sections 1786.10 and 1786.22 entitle him to inspect the files Asurint, Tenstreet, DriverIQ, and any other ICRA maintains on him. He has not yet served those requests. He will.

63. This ICRAA count does not depend on proving Penal Code section 290.46(j). A

notice or completeness failure under Civil Code section 1786.40 is independently actionable if an investigative consumer report was obtained and employment was denied without the required advice and a complete source. That count can reach discovery even if the section 290.46(j) count later fails.

64. Under Civil Code section 1786.50, Plaintiff seeks actual damages or $10,000, whichever is greater, costs, attorney's fees if later represented, and punitive damages upon proof of gross negligence or willfulness.

65. This ICRAA count is not a Fair Credit Reporting Act count. Plaintiff has not pleaded 15 U.S.C. section 1681b(b)(3). He reserves amendment if production shows a timely FCRA claim and a notice or copy defect that the 2023 letters did not cure. He also reserves amendment under Civil Code section 1786.16 if production shows Swift procured an investigative report before the required standalone disclosure and written authorization.

## VII.

## SECOND CAUSE OF ACTION

**Unlawful and Unfair Business Practices**

**Business and Professions Code section 17200 — Against All Defendants**

66. Plaintiff realleges paragraphs 1 through 65 to the extent consistent with this equitable cause.

67. Defendants engaged in unlawful practices by violating Civil Code section 1786.40 and, if proven, Penal Code section 290.46(j). They engaged in unfair practices by taking adverse action on consumer reports while a sex-offender-website component remained Processing, naming agencies without identifying the item that caused the denial, and

withholding a complete investigative-consumer-report file.

68. Plaintiff suffered injury in fact and lost money or property through the lost Swift employment opportunity and other economic losses to be proven. He does not seek future unearned wages as UCL restitution. He seeks restitution only of money or property in which he had a vested interest and that Defendants acquired or caused him to lose through the challenged practices.

69. Legal damages are not an adequate remedy for Defendants' retention, use, and dissemination of registry-derived screening data or their ongoing employment-screening practices. Plaintiff seeks an injunction requiring Defendants to cease prohibited employment use of California registry information in California recruiting; preserve and disclose the source and audit trail of Plaintiff's screening; and correct or segregate unlawfully used data, together with restitution and declaratory relief ancillary to the injunction under Business and Professions Code section 17203.

## VIII.

## THIRD CAUSE OF ACTION

**Unauthorized Employment Use of Registry Information**
**Penal Code section 290.46(j) — Against All Defendants**
**(Pleaded on Information and Belief — Preliminary NSOPW / Registry Use)**

53. Plaintiff realleges paragraphs 1 through 52, except allegations expressly pleaded in the alternative are incorporated only to the extent consistent with this cause.

54. Penal Code section 290.46(j)(1) authorizes use of information disclosed under that section only to protect a person at risk, except as otherwise authorized by law. Section

290.46(j)(2)(E) prohibits use of that information for purposes relating to employment unless another law authorizes the use.

55. Section 290.46(j)(4)(A) makes the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty not exceeding twenty-five thousand dollars ($25,000). The $25,000 figure is a cap on the civil penalty, not a substitute floor that displaces actual damages.

56. On information and belief, Swift, and such DOE Defendants as ordered, furnished, scored, or acted on the report, used preliminary information from the still-Processing NSOPW component citing a sex-offender registry — including information disclosed pursuant to section 290.46 concerning Plaintiff — in whole or in part in the employment decision. Plaintiff does not allege that the printed snapshots contain a completed NSOPW hit or the words 'SOURCE OF RECORD: CALIFORNIA SEX OFFENDER REGISTRY.' The use alleged is the use of preliminary registry information from that in-process component.

57. The use related directly to employment: it concerned the Swift Class A Driver application and the October 5, 2023 decision not to employ Plaintiff. The use was not authorized by section 290.46(j)(1) or by any other provision of law applicable to that application. Defendants knew or should have known that employment use was prohibited. The use was a substantial factor in the decision and caused the loss and injury alleged.

58. Plaintiff seeks the remedies authorized by section 290.46(j)(4)(A) and preventive relief under subdivision (j)(4)(B) to restrain any pattern or practice of employment use of Megan's Law information in Swift's California recruiting and hiring.

## IX.

## PRESERVATION OF EVIDENCE

70. Defendants are on notice to preserve Plaintiff's complete Swift and Tenstreet application file; recruiter communications of Kaufman and Hutto; the Asurint, Tenstreet, DriverIQ, Clearinghouse, PSP, and Equifax / Work Number orders, reports, component searches, adjudication, access, and cancellation logs; the decrypted September 26, 2023 pre-adverse packet; and policies governing Megan's Law, FCRA, ICRAA, and driver adjudication in 2023.

71. Relevant electronically stored information includes applicant-tracking and Driver Pulse audit fields, event timestamps, reason codes, report-view logs, emails, chats, SMS, and data-retention records from September 1, 2023 through December 31, 2023, and any later date on which the employment decision was recorded or revisited.

72. The July 2024 First Advantage/UPS report is relevant to retrievability and matching methodology. It is not a substitute for Swift's own file.

## X.

## PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays for judgment against Defendants as follows:

1. For actual, consequential, and economic damages according to proof, without double recovery;

2. For the remedies authorized by Penal Code section 290.46(j)(4)(A), including statutory, treble, exemplary, or civil-penalty relief as the trier of fact and law permit;

3. For ICRAA actual damages or $10,000, whichever is greater, and punitive damages upon the showing required by Civil Code section 1786.50, if that count is proven;

4. For punitive damages against only those Defendants for whom Civil Code section 3294 is proven, in an amount to be determined by the trier of fact, with no amount pleaded;

5. For restitution under Business and Professions Code section 17203 to the extent available;

6. For preventive and injunctive relief under Penal Code section 290.46(j)(4)(B), Business and Professions Code section 17203, and other applicable law;

7. For declaratory relief concerning Defendants' prohibited registry use to the extent an actual controversy remains;

8. For costs of suit and attorney's fees where authorized if Plaintiff obtains counsel;

9. For prejudgment and post-judgment interest as allowed by law; and

10. For such other relief as the Court deems just and proper.

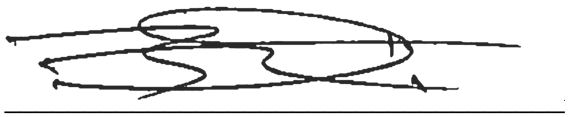
## XI.

## DEMAND FOR JURY TRIAL

73. Plaintiff demands trial by jury on all causes of action and issues so triable.

Dated: September 8, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

## VERIFICATION

## STATE OF CALIFORNIA, COUNTY OF SANTA CLARA

I, BRENDAN NGWA NFORBI, declare:

I am the Plaintiff in this action. I have read the foregoing VERIFIED COMPLAINT and know its contents. The matters stated are true of my own knowledge, except those stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on September 8, 2026, at Milpitas, California.



BRENDAN NGWA NFORBI